

FL-24-001101 WALKER VS WALKER

County: stanislaus

Division: Family Law

Department: 25

Hearing date: 2026-09-14

Motion: Respondent's Request for Order re "Other," etc.—DENIED, without prejudice. This is a post-judgment order request that Respondent served by mail on Petitioner at an address located in the state of Massachusetts, according to Respondent's proof of service. However, no address verification has been filed or served, as required. (Fam. Code, § 215(b) ["For any party served by mail, the proof of service shall include an address verification"].) Petitioner did not file a Responsive Declaration but unless Petitioner appears and waives any objection to notice and service, the Court has no authority to proceed. (Fam. Code, § 215(a) [post-judgment, no order is "valid" unless served in compliance with this section]; Marriage of Seagondollar (2006) 139 Cal.App.4th 1116, 1130 [post-judgment order in violation of section 215 is void on its face and subject to collateral attack at any time].) That said, even assuming Petitioner appears and waives any objections, Respondent's request that the Court order Petitioner to transfer possession and to sign over legal ownership of the "family dog" to Respondent is outside the terms of the parties' final judgment, one that Respondent himself prepared. Whether Petitioner agreed, as alleged, to do so following the entry of judgment is irrelevant. The Court has no authority to alter, modify or "rewrite" the terms of a property division reduced to a final judgment; instead, the Court's authority is limited to enforcement of these terms according to their plain meaning. (Marriage of Thorne & Raccina (2012) 203 Cal.App.4th 492, 499 [once judgment becomes final, court generally loses jurisdiction to modify or alter it]; Marriage of Farrell (1985) 171 Cal.App.3d 695, 702 ["Any other rule of law would reduce finality of decision in dissolution cases to an illusion"].) Merely referring to an animal as a "family pet" does not establish that the animal is community property, particularly where—as Respondent concedes—legal "title" is in Petitioner's sole and separate name. The Court's jurisdiction over separate property is limited to awarding possession to the owner spouse. The Court has no power to adjudicate the subject pet as an "omitted asset" without a threshold showing that the pet may be characterized as community property. (Fam. Code, § 2556.) Absent this, whatever agreement Petitioner made with Respondent after the entry of judgment here is a question of contract law that belongs in the Civil Division, not the Family Division, of this Court. Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

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Respondent's Request for Order re "Other," etc.—DENIED, without prejudice.

This is a post-judgment order request that Respondent served by mail on Petitioner at an address located in the state of Massachusetts, according to Respondent's proof of service. However, no address verification has been filed or served, as required. (Fam. Code, § 215(b) ["For any party served by mail, the proof of service shall include an address verification"].) Petitioner did not file a Responsive Declaration but unless Petitioner appears and waives any objection to notice and service, the Court has no authority to proceed. (Fam. Code, § 215(a) [post-judgment, no order is "valid" unless served in compliance with this section]; Marriage of Seagondollar (2006) 139 Cal.App.4th 1116, 1130 [post-judgment order in violation of section 215 is void on its face and subject to collateral attack at any time].)

That said, even assuming Petitioner appears and waives any objections, Respondent's request that the Court order Petitioner to transfer possession and to sign over legal ownership of the "family dog" to Respondent is outside the terms of the parties' final judgment, one that Respondent himself prepared. Whether Petitioner agreed, as alleged, to do so following the entry of judgment is irrelevant. The Court has no authority to alter, modify or "rewrite" the terms of a property division reduced to a final judgment; instead, the Court's authority is limited to enforcement of these terms according to their plain meaning. (Marriage of Thorne & Raccina (2012) 203 Cal.App.4th 492, 499 [once judgment becomes final, court generally loses jurisdiction to modify or alter it]; Marriage of Farrell (1985) 171 Cal.App.3d 695, 702 ["Any other rule of law would

reduce finality of decision in dissolution cases to an illusion”].)

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